

Amendment No. 1 to SB0940

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 940

House Bill No. 995*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 63-1-156(a)(3), is amended by deleting the subdivision and substituting:

(3) "Drug or alcohol violation" means a violation of:

- (A) Section 39-17-418;
- (B) Section 39-17-425;
- (C) Section 1-3-113;
- (D) Section 39-15-404;
- (E) Section 39-17-310;
- (F) Section 57-3-412(a)(3);
- (G) Section 57-3-412(a)(4);
- (H) Section 57-3-412(a)(5);
- (I) Section 57-3-412(c);
- (J) Section 57-4-203(b)(2);
- (K) Section 57-5-301(d);
- (L) Section 57-5-301(e); or
- (M) Section 57-5-303(a);

SECTION 2. Tennessee Code Annotated, Section 63-1-156, is amended by deleting "Drug overdose" in subdivision (a)(2) and substituting "Overdose"; by deleting "a drug overdose" wherever it appears in subdivisions (a)(5)(C) and (c)(1) and in subsection (b) and substituting

"an overdose"; by deleting "such drug overdose" in subsection (b) and substituting "such overdose"; and by deleting "drug overdoses" in subsection (b) and substituting "overdoses".

SECTION 3. Tennessee Code Annotated, Section 63-1-156, is amended by deleting "drug violation" wherever it appears in subsection (b) and substituting "drug or alcohol violation".

SECTION 4. Tennessee Code Annotated, Section 63-1-156, is amended by adding the following as a new subsection:

(d) Subsection (b) does not apply to violations listed in subdivisions (a)(3)(C)-(M) committed by a person licensed pursuant to title 57 while working in the scope of the person's employment or to an employee of a person licensed pursuant to title 57 while the employee is acting on behalf of such person.

SECTION 5. This act takes effect July 1, 2025, at 12:01 a.m., the public welfare requiring it.